



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TPR Jonathon King #302

Work Assignment: Troop/Division - A; Post/Unit – 5 - Dalton

INCIDENT REPORT # DPS00168610

Related Crash Reports: _____ ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 6/12/2024

Time: 1320 Hours

Location: Post 5 - Dalton

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SGT Ben Boyd #357 and TPR Jonathon King #302

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 6/8/2024

Time: 1734 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 6/8/2024, at approximately 1734 hours, TPR King was parked along Lafayette Road in Catoosa County observing traffic. TPR King saw a black Jeep Cherokee traveling north on Lafayette Road and the driver was not wearing his seat belt. As TPR King was attempting to stop the vehicle, the violator made an immediate right turn onto Midway Avenue. After turning onto Midway Avenue, the violator failed to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☐ N/A

If needed, list: Along with TPR King, Catoosa County Deputy Sheriff CPL Thomas Harris #553 was involved in the pursuit.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TPR King notified the Troop A Communications Center by radio that he was in a pursuit. TPR King provided his location, direction of travel and a description of the vehicle. Senior Dispatcher A. Jennings received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once the pursuit initiated, Senior Dispatcher A. Jennings cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A troopers. Dispatcher Hunter contacted the Catoosa County 911 Center by telephone to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on Midway Avenue and traveled eastbound until the violator made a right turn onto Cross Street. The pursuit terminated on Cross Street near Joy Street when the violator came to a stop. The pursuit traveled approximately 0.8 miles and lasted 1 minute and 15 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit support a charge of Felony fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes ☐ No If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TPR King exercised due caution throughout the pursuit and demonstrated good judgement/decision making skills. TPR King operated his patrol vehicle in a responsible manner and utilized all his emergency equipment. At the conclusion of the pursuit, TPR King didn't take any unnecessary risks while taking the violator into custody.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with clear skies and a dry road surface. The traffic conditions on all roads traveled during the pursuit would be described as light to moderate.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☒ N/A If Yes, explain:

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☒ N/A If Yes, explain:

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: During the pursuit, the violator fled at high speeds and drove on the wrong side of the road, failed to stop for traffic control devices, and improperly passed other vehicles. The high speed reckless driving of the violator posed a great risk to the public and clearly demonstrated no regard for the safety of himself, his passengers and the law enforcement officers.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☒ N/A If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: This was TPR King's third pursuit as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TPR King has received E.V.O.C. and Advanced E.V.O.C. Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: TPR King exercised good judgement/decision making skills by not implement the Precision Immobilization Technique once he realized there were children in the vehicle.

2. Areas for improvement.

☐ N/A If Yes, explain: TPR King should notify the Communications Center sooner that he is in a pursuit once its evident that the violator is fleeing.

3. Other considerations.

☐ N/A If Yes, explain: At the conclusion of the pursuit, TPR King drew and pointed his service weapon at the violator while taking him into custody.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.



N/A

If Yes, explain:

Lt. T. L. Nichols #36
Reviewing Officer

Lt. T. L. Nichols #36

6/26/2024
Date